

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
WALTHER CASTILLO,

Plaintiff,

-against-

THE CITY OF NEW YORK,
POLICE OFFICER JOSEPH SIGNORILE,
AND JOHN DOES 1-3,

Defendants.

Index No.:

Date Purchased:

SUMMONS

Plaintiff designates
BRONX County as
the place of trial.

The basis of venue is:
Location of Occurrence

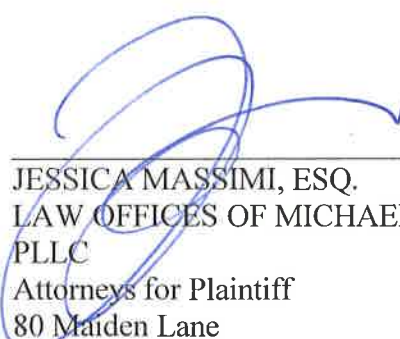
Location of Occurrence
is the Northeast Corner
of Boston Road and
East 165th Street

-----X

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
January 5, 2017



JESSICA MASSIMI, ESQ.
LAW OFFICES OF MICHAEL S. LAMONSOFF,
PLLC
Attorneys for Plaintiff
80 Maiden Lane
New York, N.Y. 10038
(212) 962-1020
Our File No. 18413

TO: THE CITY OF NEW YORK
c/o The New York City Law Department
100 Church Street
New York, NY 10007

POLICE OFFICER JOSEPH SIGNORILE (TAX 949765)
Patrol Borough Bronx
One Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
WALTHER CASTILLO,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK,
POLICE OFFICER JOSEPH SIGNORILE,
AND JOHN DOES 1-3,

Defendants.

- X
1. Plaintiff, WALTHER CASTILLO, by and through his attorneys, **THE LAW OFFICES OF MICHAEL S. LAMONSOFF, PLLC**, as and for his Complaint, respectfully alleges, upon information and belief:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitution of the United States of America.
2. Plaintiff also brings this action pursuant to New York State Law.

JURISDICTION

3. This action is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and the Fourth and Fourteenth Amendments to the United States Constitution.
4. This action is also brought pursuant to New York State Law.
5. This court has jurisdiction over each state court claim as well as each federal claim pursuant

to concurrent jurisdiction.

6. Plaintiff timely filed a Notice of Claim for all claims arising from the dismissal of his criminal prosecution, which accrued on October 8, 2015.
7. Plaintiff complied with all conditions precedent necessary to commencing an action pursuant to state law.
8. Plaintiff's claims arising out of his acquittal have been herein filed within one year and ninety days of the accrual of those causes of action.

VENUE

9. Venue is properly laid in the Supreme Court of the State of New York, County of Bronx, in that the events giving rise to the claim occurred in Bronx County, in the State of New York.

JURY DEMAND

10. Plaintiff respectfully demands a trial by jury of all issues in this matter.

PARTIES

11. Plaintiff, WALTHER CASTILLO, is, currently a resident of Bronx County, City and State of New York.
12. At all relevant times hereinafter mentioned, defendant, City of New York ("New York City"), was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York and acts by and through its agencies, employees and agents, including, but not limited to, the New York City Police Department ("NYPD"), and their employees.
13. At all relevant times hereinafter mentioned, defendant, POLICE OFFICER JOSEPH SIGNORILE (Shield 29637), was an individual employed by the City of New York as a member of the NEW YORK CITY POLICE DEPARTMENT ("NYPD"). At all times

hereinafter mentioned OFFICER SIGNORILE was assigned to Patrol Borough Bronx. Defendant Signorile is sued herein in his official and individual capacities.

14. At all relevant times hereinafter mentioned, the Doe Defendants, were an individuals employed by the City of New York as members of the NEW YORK CITY POLICE DEPARTMENT ("NYPD"). At all times hereinafter mentioned the Doe Defendants were assigned to Patrol Borough Bronx. The Doe Defendants are sued herein in their official and individual capacities.
15. At all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or CITY OF NEW YORK.
16. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant, THE CITY OF NEW YORK.
17. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant, THE CITY OF NEW YORK.

FACTS

18. On July 4, 2015, at approximately 11:30 p.m., plaintiff WALTHER CASTILLO, was a lawful passenger inside of a vehicle which was being lawfully operated at or near the intersection of Boston Road and East 165th Street, County of Bronx, City and State of New York.
19. At or about that time and place, the Defendants arrived on duty, in plainclothes, and in an unmarked vehicle.
20. The Defendants pulled over the vehicle in which Plaintiff was a passenger.

21. The driver of the vehicle in which Plaintiff was a passenger pulled the vehicle over, and complied with the Defendants' requests.
22. The Defendants exited their vehicle and approached the vehicle in which Plaintiff was a passenger.
23. The Defendants began striking Plaintiff, swearing at him, and forcibly pulled Plaintiff from the vehicle.
24. Plaintiff was not engaged in any suspicious or illegal activity.
25. Plaintiff was not engaged in any violent or threatening activity.
26. Plaintiff repeatedly asked the Defendants, in sum and substance, why the vehicle was being pulled over, and why he was being assaulted, detained, and pulled from the vehicle.
27. The Defendants did not provide the Plaintiff with a response to his questions.
28. Nonetheless, the defendants searched the Plaintiff without any legal basis.
29. The search revealed no evidence of any guns, drugs, or contraband.
30. Despite the absence of any evidence of wrongdoing on the part of Plaintiff, the Defendants placed him in handcuffs and formally arrested him.
31. Plaintiff was then taken to the station house of a local area precinct where he was held for several hours and searched.
32. The search revealed no evidence of any guns, drugs, or contraband.
33. During Plaintiff's transport to the precinct, the Defendants continued to assault him by punching and striking him on his body with their hands and fists.
34. Plaintiff was eventually transferred to Bronx County Central Booking where he was held for several more hours.
35. Plaintiff was eventually arraigned on a criminal complaint made on the basis of false

allegations supplied defendant Signorile.

36. Pursuant to these false statements, false information, and fabricated evidence, Plaintiff was falsely charged with multiple counts of weapons possession.
37. These charges were made on the basis of false allegations sworn to by Defendant Signorile.
38. Defendants provided these false statements to the Bronx County District Attorney's Office knowing that there was no basis to support these allegations.
39. These and other allegations, information, and evidence, were false and the defendants knew them to be false when he made them.
40. At Plaintiff's arraignment, he was released from custody and provided a future court date to return to court on the false allegations and charges made against the Defendants
41. Plaintiff was required to continue returning to criminal court on the state charges for several months before those charges were dismissed on October 8, 2015.
42. The decision to arrest plaintiff was objectively unreasonable under the circumstances.
43. At no time did there exist sufficient cause to seize or arrest plaintiff, nor could the defendants have reasonably believed that such cause existed.
44. The factual allegations and testimony sworn to by both of the individual defendants were materially false and deliberately made to justify the illegal arrest of plaintiff.
45. At no time did defendants take any steps to intervene in, prevent, or otherwise limit the heretofore misconduct engaged in against plaintiff.
46. The individual defendants intentionally and deliberately gave false statements and/or failed to file accurate or corrective statements, or otherwise failed to report the conduct of the defendants who engaged in the misconduct described herein as required.
47. That at all times relevant herein, the defendants were on duty and acting within the scope of

their employment, and their acts were done in furtherance of the City of New York's interests and without legal justification or excuse.

FIRST CLAIM FOR RELIEF
FALSE ARREST AND EXCESSIVE FORCE
UNDER 42 U.S.C. § 1983
(against the individual defendants)

48. Plaintiff WALTHER CASTILLO repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
49. As a result of the defendants' conduct, plaintiff was subjected to illegal, improper and false arrest, excessive force, taken into custody, and caused to be falsely imprisoned, detained, injured, and confined without any probable cause, privilege, or consent.
50. As a result of the foregoing, plaintiff's liberty was restricted and he was put in fear for his safety, he was injured and endured pain, without probable cause.

SECOND CLAIM FOR RELIEF
MALICIOUS PROSECUTION
UNDER 42 U.S.C. § 1983
(against the individual defendants)

51. Plaintiff, WALTHER CASTILLO, repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
52. Defendants misrepresented and falsified evidence before the Bronx County District Attorney.
53. Defendants did not make a complete and full statement of facts to the District Attorney.
54. Defendants withheld exculpatory evidence from the District Attorney.
55. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff.

56. Defendants lacked probable cause to initiate criminal proceedings against plaintiff.
57. Defendants acted with malice in initiating criminal proceedings against plaintiff.
58. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff.
59. Defendants lacked probable cause to continue criminal proceedings against plaintiff.
60. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.
61. Notwithstanding the perjurious and fraudulent conduct of defendants, the criminal proceedings were terminated in plaintiff's favor when he was acquitted after a jury trial.
62. As a result of the foregoing, plaintiff's liberty was restricted and he was put in fear for his safety and liberty without probable cause.

THIRD CLAIM FOR RELIEF FOR
DENIAL OF FAIR TRIAL,
FABRICATION OF EVIDENCE,
AND DENIAL OF DUE PROCESS
UNDER 42 U.S.C. § 1983
(against the individual defendants)

63. Plaintiff WALTHER CASTILLO repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
64. Defendant Signorile fabricated evidence to bring about the felony indictment and trial against plaintiff.
65. Defendant Signorile made false statements against plaintiff in order to secure his indictment and provided these statements to the district attorney's office.
66. The Defendants violated Plaintiff's due process rights by failing to inform the District Attorney about the manner in which the initial questioning of witnesses took place.

67. In so doing, the Defendants prevent the District Attorney from making informed decisions about the reliability of the evidence in this case.

68. As a result of the fabrication of evidence and denial of fair trial by Defendant Signorile, plaintiff was subjected to pretrial confinement and restrictions associated with having to return to court, and was forced to make several appearances in court pursuant to Defendant Signorile's false allegations before his charges were dismissed.

**FOURTH CAUSE OF ACTION
FOR MUNICIPAL LIABILITY
PURSUANT TO 42 U.S.C. SECTION 1983**

69. Plaintiff, repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.

70. The NYPD Defendants arrested, searched, and incarcerated plaintiff WALTHER CASTILLO, in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said search, arrest and incarceration would jeopardize plaintiff's liberty, well-being, safety, and violate his constitutional rights.

71. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials, with all of the actual and/or apparent authority attendant thereto.

72. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of THE CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.

73. Those customs, policies, patterns, and practices include, but are not limited to:

- i. requiring officers to make a predetermined number of arrests and/or issue a predetermined number of summonses within a predetermined time frame;
- ii. requiring precincts to record a predetermined number of arrests and/or issue a predetermined number of summonses within a predetermined time frame;
- iii. failing to take any measures to correct unconstitutional behavior when brought to the attention of supervisors and/or policy makers;
- iv. failing to properly train police officers in the requirements of the United States Constitution.

74. The aforesaid customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department directly cause, *inter alia*, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics;
- ii. arresting individuals regardless of probable cause in order to inflate precinct-wide statistics;
- iii. falsifying evidence and testimony to support those arrests;
- iv. falsifying evidence and testimony to cover up police misconduct.

75. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department constitute a deliberate indifference to the safety, well-being and constitutional rights of plaintiff, WALTHER CASTILLO.

76. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

77. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

78. As a result of the foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department, plaintiff was searched and placed under arrest unlawfully.
79. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of plaintiff.
80. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of plaintiff's constitutional rights.
81. All of the foregoing acts by defendants deprived plaintiff of federally protected constitutional rights, particularly their Fourth and Fourteenth Amendment rights to be free from unreasonable search and seizure.

**FIFTH CAUSE OF ACTION
FOR LIABILITY AGAINST THE CITY OF NEW YORK FOR MALICIOUS
PROSECUTION AND FABRICATION OF EVIDENCE
PURSUANT TO *RESPONDEAT SUPERIOR***

82. Plaintiff WALTHER CASTILLO repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
83. Pursuant State law and pendent State claim jurisdiction, the Defendant City of New York is responsible, for the actions and conduct of its Defendant Officers, as employees and agents of the City of New York, pursuant to the doctrine of *respondeat superior*.
84. Plaintiff Walther Castillo suffered injuries and damages.

WHEREFORE, the plaintiff respectfully requests judgment against defendants as follows:

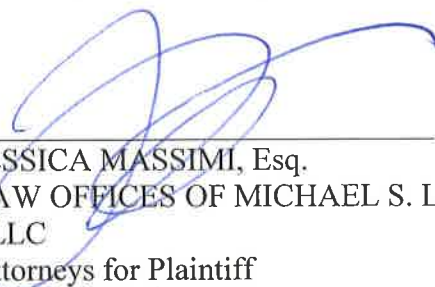
- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;

- iii. reasonable attorneys' fees and costs under 42 U.S.C. §1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
January 5, 2017

Respectfully submitted,

**LAW OFFICES OF MICHAEL S.
LAMONSOFF, PLLC**
Counsel for the Plaintiff

By: 

JESSICA MASSIMI, Esq.
LAW OFFICES OF MICHAEL S. LAMONSOFF,
PLLC
Attorneys for Plaintiff
32 Old Slip, 8th Floor
New York, New York 10005
(212) 962-1020

VERIFICATION

JESSICA MASSIMI, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LAW OFFICES OF MICHAEL S. LAMONSOFF, attorneys of record for Plaintiff, WALTHER CASTILLO, in the action within. I have read the annexed

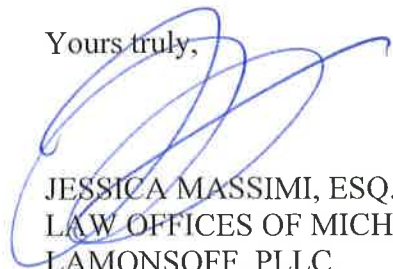
SUMMONS AND VERIFIED COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiff is that Plaintiff is not presently in the county wherein the attorneys for the Plaintiff maintain their offices.

Dated: New York, New York
January 5, 2017

Yours truly,



JESSICA MASSIMI, ESQ.
LAW OFFICES OF MICHAEL S.
LAMONSOFF, PLLC
Attorneys for Plaintiff
32 Old Slip, 8th Floor
New York, New York 10005
(212) 962-1020